Machine Purchase Agreement

This agreement is made this 4th day of FEBRUARY at PRENZA 1 MARILAO,BULACAN, Philippines by and between.

Labline Enterprises Inc., a company duly organized and existing under the laws of the Philippines, with address Gabby Isabelle Bldg, Larion Bajo, Tuguegarao City, Cagayan represented by President, Antonette F. Gumiran, RMT, hereinafter referred to as the SELLER

BEYONDBARK ANIMAL CLINIC, an entity duly organized and existing under the laws of the Philippines with principal address at PRENZA 1 MARILAO,BULACAN Represented here in by, KRISTEEN MAY DELA CRUZ, DVM, hereinafter referred to as the BUYER

WITHNESSETH THAT:

WHEREAS, The BUYER is interested for purchasing a Medical Instrument called VH30 HEMATOLOGY ANALYZER, hereinafter referred to as the "Machine"

WHEREAS, Labline Enterprises Inc is the importer/exclusive dealer of the said Machine.

NOW THEREFORE, in consideration of the premises and the mutual covenants hereinafter stipulated, the SELLER and BUYER hereby agree as follows:

1. **MACHINE**
   1.1 VH30 HEMATOLOGY ANALYZER

2. **PURCHASE PRICE AND PAYMENT TERMS**
   2.1 Total Machine price 450000.
   2.2 The BUYER should issue 100000 PHP as cash payment before/during installation
   2.3 Remaining balance payable with PDC for 12 months.
   2.4 The BUYER should issue 12 post-dated checks amounting 29,166.67 each upon or during installation.
   2.5 Machine Price is Inclusive of
      2.5.1 1 UNIT VH30 HEMATOLOGY ANALYZER
      2.5.2 1 SET VH SERIES DILUENT 4X5L W/ CARDS
      2.5.3 1SET VH SERIES LYSE 2X250ML W/ CARDS
      2.5.4 1 BTL PROBE CLEANSER
      2.5.5 1 UNIT AVR
      2.5.6 1 PACK EDTA K3
      2.5.7
   2.6 This Contract Price is Valid for 12 months or until 02/2027.
   2.7 Cancellation of order will subject the buyer to pay 25% of the total machine price.

3. WARRANTIES

3.1 The BUYER shall provide adequate space and working room temperature, as well as the necessary power supply in order to maximize the trouble-free performance of the instrument.
3.2 The BUYER agrees that only Labline's appointed personnel are authorized to repair; revise and/or replace the parts necessary to keep the instrument in good working condition.
3.3 The BUYER agrees to utilize only Labline's approved reagents, calibrators and controls.
3.4 The Service and Preventive Maintenance will be free of charge provided any of the three preceding sections are not violated.
3.5 1_____ year warranty for the parts.

4. INDEMNIFICATION OF SELLER:

4.1 Buyer shall indemnify, protect and hold harmless the Seller, its agents, servants, successors and assigns from and against all losses, damages, injuries, claims, demands and expenses, including legal expenses, of whatever nature, arising out of the use, condition or operation of any item of the equipment, regardless of where, how and by whom operated. Buyer shall assume the settling of, and the defense of any suits or other legal proceedings brought to enforce all such losses, damages, injuries, claims, demands and expenses and shall pay all judgments entered in the suit for other legal proceedings in the Seller's Municipality address. The indemnification and assumptions of liability and obligation herein provided shall continue in full force and effect notwithstanding the termination of this agreement, whether by expiration of time, by operation of law or otherwise.

5. RETENTION OF TITLE

5.1 If the BUYER fails to pay for 3 months amortization, the seller has the right to retract and pull back the machine, accessories and reagents.
5.2 Equipment shall remain Seller's property until Buyer has made full payment to Seller of all sums due.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed and do each hereby warrant and represent the execution and delivery of this Agreement has been duly authorized by all necessary and appropriate corporate action and constitutes a valid, legal and binding Agreement enforceable in accordance with its terms.

SELLER:

Antonette F. Gumiran, RMT
President
Labline Enterprises Inc.

BUYER:

Name: KRISTEEN MAY DELA CRUZ, DVM
Position: OWNER
Clinic Name: BEYONDBARK ANIMAL CLINIC
Contact #: _____

Authorized Representive:

Name: LADY ANN PADAONG
Position: NAT'L SALES AND MARKE